

25NWLC24612 25NWLC24612

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-31

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Case Number: 25NWLC24612 Hearing Date: July 31, 2026 Dept: Y

25NWLC24612: CAVALRY SPV I, LLC vs AMAURY ZAMBRANO

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Defendant Amaury Zambrano ("Defendant"). No opposition has been filed by Plaintiff Calvary SPV I, LLC ("Plaintiff").

The Court notes that Plaintiff filed this action against Defendant seeking to collect an alleged consumer debt arising from a Costco Anywhere Visa credit card issued by Citibank, N.A. Plaintiff purchased the account from the original creditor, Citibank. Defendant argues that the credit card agreement governing the account contains an arbitration provision requiring that claims relating to the account be resolved through binding arbitration upon election of either party. Defendant has elected to resolve Plaintiff's claims by binding arbitration and has made this request by filing this motion pursuant to the terms of the cardmember Agreement. The agreement designates American Arbitration Association ("AAA") as the arbitrator.

Code of Civil Procedure section 1281.2 provides that a court shall order arbitration if it determines that an agreement to arbitrate exists and that a party to the agreement refuses to arbitrate. Here, the agreement mandates arbitration if arbitration is elected by Defendant. Plaintiff has not filed an opposition to Plaintiff's request to arbitrate, and thus, it is unclear whether Plaintiff is refusing to arbitration. Nonetheless, Plaintiff has not initiated arbitration with AAA, which is a simple process. Once arbitration is compelled, the court must stay the action pending the outcome of the arbitration pursuant to Code of Civil Procedure section 1281.4.

Pursuant to Code of Civil Procedure sections 1281.2 and 1281.4, Defendant's Motion to Compel Arbitration is GRANTED. The proceedings will be stayed for approximately 120 days pending arbitration with AAA as set forth in the Agreement.

The Court advances and vacates the current trial date of January 7, 2027. The Court sets a Status Conference Re: Arbitration on January 7, 2027 at 8:30 a.m. in Department Y. If the parties have not initiated arbitration by the date of the Status Conference Re: Arbitration, the Court will reset the trial date at the request of either party and find that the right to arbitrate has been waived.

Plaintiff to give notice.